



LABOUR DEPARTMENT
(Employment Agencies Administration)

勞工處
(職業介紹所事務科)

Your reference 來函編號：

Our reference 本處檔案編號： in EA 8/1/241 (III)

Tel. number 電話號碼： 2115 3667

Fax. number 傳真機號碼： 2115 3756

致：職業介紹所持牌人

恪守專業水平及依法經營

本函旨在通知你有關規管職業介紹所的最新發展，並提醒你必須時刻遵守相關法例和規定。

《2018年僱傭（修訂）條例》

《2018年僱傭（修訂）條例》已於2018年2月9日生效，大幅加重對職業介紹所濫收求職者費用或無牌經營的刑罰，由最高罰款港幣5萬元，提高至最高罰款港幣35萬元及監禁三年，並把檢控這兩項罪行的法定時效限制由罪行發生後六個月延長至12個月。此外，濫收求職者費用罪行的涵蓋範圍亦擴展至包括持牌人、職業介紹所的管理層及受僱人員。條例亦為勞工處處長（處長）拒絕發出／續發或撤銷職業介紹所牌照訂定新的理由，以及訂明處長可適時發出實務守則，規管業界。

最新修訂的《職業介紹所實務守則》

根據上述《僱傭條例》，處長於2018年2月9日頒布最新修訂的《職業介紹所實務守則》（守則），取代於2017年1月13日以行政方式發布的守則，供職業介紹所業界依循，藉以促進業界的專業水平及服務質素。勞工處已於2月向全港的職業介紹所寄出守則的印刷本，守則亦可於「職業介紹所專題網站」（www.eaa.labour.gov.hk）下載。本處可就查察到的違反守則事宜，向職業介紹所發出警告信，並敦促其糾正。根據《僱傭條例》第53(1)(c)(iva)條、(1)(d)(iii)條及(1)(e)(ii)條，職業介紹所如沒有遵從守則，處長可拒絕發出、續發或撤銷其牌照。

保障求職者(包括外籍家庭傭工)

勞工處十分重視保障外籍家庭傭工（外傭）在香港工作的法定權益。本處重申，濫收求職者費用屬嚴重罪行。如職業介紹所因濫收佣金而被定罪，處長會拒絕續發其牌照，或將其牌照撤銷。守則亦指出，職業介紹所必須避免牽涉在外傭的財務事宜，例如參與或協助海外招聘公司、培訓中心等向外傭收取費用等。職業介紹所不得協助或教唆僱主非法扣減外傭的工資（包括扣減工資以向第三者償還貸款或支付其他費用），或剝削外傭的法定權益。職業介紹所亦應確保向僱主及求職者提供的意見符合相關法例及標準僱傭合約的規定。

保障僱主

本科留意到僱主對涉及外傭就業介紹服務的職業介紹所的投訴持續上升，投訴事項包括職業介紹所向僱主提供的外傭資料誤導失實、教唆外傭到職不久後即辭職轉工及退款安排不當等。因此，本科提醒各職業介紹所必須遵從守則所列明的標準，誠實行事，並以真確、公平及全面的方式向求職者及僱主提供相關資料，以便他們作出恰當的決定。為免不必要的誤會或爭拗，職業介紹所亦應與僱主及求職者擬定書面服務協議，清楚列明服務條款、範圍，以及有關服務的收費。

勞工處會嚴肅處理關於職業介紹所的非法或不當行為的投訴，並會在收到投訴後採取果斷行動。如有足夠證據證明有關職業介紹所違反法例，勞工處會嚴厲執法。持牌人有責任提醒及監督職員依從法例及守則規定行事，以及恪守社會大眾的期望。不當的經營手法不但會導致職業介紹所商譽受損，更有可能因觸犯法例而導致職業介紹所牌照被撤銷。隨函夾附《經營職業介紹所的相關法例、守則及須知》以供參考。

提高透明度 — 發布職業介紹所被定罪、撤銷／拒絕續發牌照及書面警告的紀錄

為提高透明度，促進業界採取良好的營運手法，並加強保障公眾利益，勞工處現正諮詢業界及職業介紹所服務的使用者有關於職業介紹所專題網站更有系統地發布職業介紹所被定罪、撤銷／拒絕續發牌照的紀錄，以及發布職業介紹所被勞工處職業介紹所事務科書面警告的紀錄的建議。

概要來說，本處將會編制並於職業介紹所專題網站發布以下三項名單，包括：

- (1) 職業介紹所在過去 24 個月因干犯濫收佣金或無牌經營的罪行而被定罪的名單；
- (2) 職業介紹所在過去 12 個月被撤銷／拒絕續發牌照的名單；及
- (3) 職業介紹所在過去 12 個月因違反守則而被書面警告的名單。

除書面警告的紀錄外，其他的兩項紀錄現時已於職業介紹所專題網站以憲報及／或新聞公報的方式發布。上述名單將包括相關職業介紹所的名稱、地址，以及有關紀錄產生的日期等，以供公眾參考。隨函夾附諮詢文件以供參考。

你可在 2018 年 9 月 7 日或之前，透過電郵(eaa-consultation@labour.gov.hk)、傳真(2115 3756)或郵遞(九龍旺角道 1 號旺角道壹號商業中心 9 樓 906 室勞工處職業介紹所事務科)，就上述建議提出書面意見。

如對《僱傭條例》及標準僱傭合約的內容有任何疑問，請致電本處查詢熱線 2717 1771(由「1823」接聽)。另外，如對牌照事項或是次諮詢有任何查詢，歡迎致電 2115 3667 與本處職員聯絡。

勞工處處長



(林頤年 代行)

2018 年 7 月 30 日

附件 1：《經營職業介紹所的相關法例、守則及須知》

附件 2：諮詢文件



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30th July 2018

To : Licensees of employment agencies

Dear Sir/Madam,

Observing Professional Standards and Legal Provisions

This letter seeks to bring your attention to the latest development in regulation of employment agencies (EAs) and you are reminded to strictly observe the relevant laws and regulations at all time.

Employment (Amendment) Ordinance 2018

The Employment (Amendment) Ordinance 2018 (the Ordinance) has come into effect on 9 February 2018. It substantially raises the maximum penalties for EAs committing the offences of overcharging job-seekers and unlicensed operation from HK\$50,000 to HK\$350,000 and imprisonment for three years and extends the statutory time limit for prosecution of the said offences from six to 12 months. It also extends the scope of the overcharging offence to include (in addition to the licensee) the management as well as persons employed by EAs, provides new grounds for the Commissioner for Labour (the Commissioner) to refuse to issue/renew or revoke EA licences and that the Commissioner may issue codes of practice from time to time to regulate the EA industry.

Revised Code of Practice for Employment Agencies

In accordance with the Ordinance, the Commissioner promulgated the revised Code of Practice for Employment Agencies (CoP) on 9 February 2018, replacing the CoP promulgated administratively on 13 January 2017, for compliance by the industry with a view to promoting professionalism and service quality in the industry. A copy of the CoP has been sent to all EAs in February and could be downloaded at the Employment Agencies Portal (EA Portal, www.eaa.labour.gov.hk). The Labour Department (LD) would issue warning letters to EAs for rectification of non-compliance with the CoP detected. According to section 53(1)(c)(iva), (1)(d)(iii) and (1)(e)(ii) of the Ordinance, the Commissioner may also refuse to issue, renew or may revoke the licence of an EA if it has failed to comply with the CoP.

Protection to Job-seekers, including Foreign Domestic Helpers

LD attaches great importance to protecting the rights of foreign domestic helpers (FDHs) in Hong Kong. We reiterate that overcharging job-seekers is a serious offence. If an EA is convicted of overcharging, the Commissioner will refuse to renew or revoke its licence. The CoP also points out that EAs should not get involved in the financial matters of FDHs, such as taking part or assisting in the collection of fees from FDHs on behalf of overseas recruiters, training centres, etc.. Besides, EAs must not aid or abet employers to make unlawful deduction of FDHs' wages (including wage deduction for repayment of loans or other expenses to a third party), or to grant FDHs less than the statutory benefits. They should ensure that their advice to employers and job-seekers is in line with relevant laws and terms of the Standard Employment Contract (the Contract).

Protection to Employers

The Employment Agencies Administration (EAA) of LD continues to note the increasing number of complaints from employers against EAs placing FDHs. The complaints were mainly related to provision of false or misleading personal particulars of FDHs, abetting FDHs to job-hopping, improper refund mechanisms, etc..

In this regard, EAs are reminded that they should comply with the standards set out in the CoP and act honestly. They should disclose information in a true, fair and complete manner so that employers and job-seekers can make a fair decision. To avoid unnecessary misunderstanding or dispute, they should also draw up service agreements with employers and job-seekers to spell out clearly the service terms and scope as well as fees that will be charged for the services.

LD takes a serious view on all complaints against illegal or improper practices of EAs and will follow them up proactively. Enforcement action will be promptly taken where the complaints are substantiated. As a licensee, you are obliged to remind and supervise your staff to comply with the laws and regulations, as well as to abide by the professional standards expected by the community. Malpractices will not only tarnish the reputation of your agency, but may also lead to revocation of licence due to violation of law. "Relevant Legal Provisions, Codes and Points-to-Note for Operating an Employment Agency" are annexed for your reference.

Enhancement of Transparency – Publication of EAs' Records of Conviction, Revocation/Refusal of Renewal of Licence and Written Warnings

To enhance transparency and to foster the adoption of good practices by EAs and to better protect the interest of the public, LD is consulting the EA industry as well as users of EA services, about its proposal for publishing in a more systematic way EAs' records of conviction, revocation/refusal of renewal of licence and publishing written warnings issued to EAs by EAA of LD at the EA Portal.

In gist, it is proposed that the following three lists will be compiled and published at the EA portal, including –

- (1) a list of EAs convicted of the offence(s) of overcharging or unlicensed operation in the past 24 months;
- (2) a list of EAs whose licences were revoked/refused renewal in the past 12 months; and
- (3) a list of EAs which were issued written warnings for non-compliance with the CoP in the past 12 months.

Save for the records of written warnings, the other two records are already available in the Portal in the form of press releases and/or gazette notices. The lists shall include the name and address of the EA concerned, as well as the date when the relevant record was established, etc., for easy reference by the public. A copy of the consultation paper is enclosed for your reference.

You are welcome to send in written submissions on the proposal by email (eaa-consultation@labour.gov.hk), by fax (2115 3756) or by post (Employment Agencies Administration of Labour Department, Unit 906, 9/F, One Mong Kok Road Commercial Centre, 1 Mong Kok Road, Kowloon) on or before 7 September 2018.

Should you have any questions on the Employment Ordinance and terms of the Contract, please call our telephone hotline at 2717 1771 (handled by "1823") for enquiry. On the other hand, if you have any questions related to licensing matters or the consultation, you may contact EAA at 2115 3667.

Yours faithfully,



(Ms. Irene CASTILHO)
for Commissioner for Labour

Encl.

1. Relevant Legal Provisions, Codes and Points-to-Note for Operating an Employment Agency
2. Consultation Paper

《經營職業介紹所的相關法例、守則及須知》

「職業介紹所實務守則」

《2018 年僱傭(修訂)條例》已於 2018 年 2 月 9 日正式生效，根據新訂的《僱傭條例》第 62A 條，勞工處處長(處長)於當日頒布最新修訂的《職業介紹所實務守則》(守則)，取代於 2017 年 1 月 13 日以行政方式發布的守則，供業界依循，藉以促進業界的專業水平及服務質素。新修訂的守則主要反映新的法例規定；闡明職業介紹所在處理求職者護照或個人身分證明文件時應達到的標準；列明《防止賄賂條例》的規定；以及新增表格樣本以供職業介紹所參考。此外，為了令外籍家庭傭工(外傭)更清楚了解其住宿安排，職業介紹所應提醒僱主採取良好做法，在簽署標準僱傭合約前向外傭提供有關住宿的資料。職業介紹所必須依從守則的規定行事。根據《僱傭條例》第 53(1)(c)(iva)條、第 53(1)(d)(iii)條及第 53(1)(e)(ii)條，職業介紹所持牌人或擬作為持牌人的人、該等人士的有關連人士¹或受僱於該等人士的人員如沒有遵從守則，處長可拒絕發出、續發或撤銷其牌照。

禁止濫收佣金

根據《僱傭條例》(第 57 章)及《職業介紹所規例》(第 57A 章)，職業介紹所只可在求職者(包括外傭)成功覓得職位並收到第一個月工資後，向其收取不超過首月工資的百分之十的佣金。違反有關規定的最高刑罰為罰款 350,000 元及監禁 3 年。濫收求職者費用的罪行除涵蓋持牌人外，其相關人士²或任何看來是以此等持牌人或相關人士身分行事的人，如向求職者收取高於訂明佣金的款項，亦同樣可被檢控。職業介紹所應在收取款項後，向求職者提供印有公司名稱和認可公司印章的收據，並在營業地點保存有關紀錄。守則規定，職業介紹所向外傭發出的收據亦應包括外傭姓名、收取的款額及其性質，以及收款日期。

濫收佣金屬嚴重罪行。如職業介紹所因違反這條例而被定罪，處長會拒絕續發其牌照，或將其牌照撤銷。自 2016 年，七間職業介紹所因其持牌人濫收求職者費用被定罪而被處長撤銷或拒絕續發其牌照。

外傭的法定權益及保障

為外傭提供就業服務的職業介紹所，應履行作為介紹人的責任，向外傭清楚解釋他們可享有的法定及合約權益。由於外傭可能對香港的生活及工作環境的認識有限，職業介紹

¹ 簡單來說，有關連人士包括職業介紹所的管理層。根據法例，有關連人士就一間公司而言，指該公司的董事、經理、秘書或其他類似的人員；或就一個合夥中的合夥人而言，指該合夥中其他合夥人，或其他涉及該合夥的管理的人。

² 簡單來說，相關人士包括職業介紹所的管理層及受僱人員。根據法例，相關人士指職業介紹所持牌人或擬作為持牌人的人的有關連人士或受僱人員；而有關連人士就一間公司而言，指該公司的董事、經理、秘書或其他類似的人員；或就一個合夥中的合夥人而言，指該合夥中其他合夥人，或其他涉及該合夥的管理的人。

所應設法盡力向外傭提供所需協助，以便他們適應新的環境。職業介紹所亦應提醒他們在工作上遇到問題時盡早尋求協助，特別是受到苛待，或遭短付工資／不獲安排休息日／假日等，並按情況需要向他們提供所需協助。本處期望職業介紹所加強與外傭的聯繫，以了解及跟進他們的需要。此外，外傭主要來源國的駐港領事館會定期舉辦簡介會予新來港外傭，職業介紹所應鼓勵外傭出席簡介會，並呼籲僱主作出相應安排讓外傭出席。職業介紹所亦應呼籲外傭僱主作出適當安排，以方便外傭能夠適時處理與在港工作有關的各項手續，例如護照續期、簽證申請等。

職業介紹所不得從事不當行為

職業介紹所必須遵守所有香港法例及確保介紹所正當經營。職業介紹所不應保管或扣留外傭的個人財物(如護照、提款卡、僱傭合約、政府派發給他們的指南及有關外傭權益的小冊子等)，否則可能會觸犯《盜竊罪條例》(第 210 章)下的刑事罪行。此外，職業介紹所不應牽涉入外傭與海外職業介紹所或財務公司的財務事宜。職業介紹所亦不得協助或教唆外傭觸犯法例。根據《僱傭條例》(第 53(1)(c)(v)條)，處長有權通盤考慮所有相關因素，從而決定職業介紹所持牌人或牌照申請人是否經辦職業介紹所的適當人選及是否發出、續發或撤銷牌照。

僱主須向外傭支付不少於規定最低工資的月薪

僱主須向其聘用的外傭支付不低於簽訂合約時適用的規定最低工資水平的月薪(現時為**每月 4,410 港元**)。職業介紹所如協助或教唆僱主以少於規定最低工資聘用外傭，與僱主同屬違法。**任何僱主短付工資，一經定罪，最高刑罰為罰款 350,000 元及監禁 3 年。**

任何職業介紹所或任何人士如與他人(包括僱主)串謀，在向入境事務處呈交入境簽證申請時提供虛假陳述(包括工資資料)，即違反《入境條例》(第 115 章)。有關的違法行為屬嚴重罪行，一經定罪，最高刑罰為罰款 150,000 元及監禁 14 年。

不得剝削外傭權益

職業介紹所的經營者及其僱員應確保向僱主提供的意見符合《僱傭條例》及標準僱傭合約的規定。職業介紹所**不得**協助或教唆僱主非法扣除外傭的工資(包括扣減工資以向第三者償還貸款或支付其他費用)，或剝削外傭的法定權益，例如休息日或法定假日。根據《刑事訴訟程序條例》(第 221 章)，任何人協助或教唆另一人犯罪，即屬同罪。

此外，根據標準僱傭合約第 8 條，僱主須負擔外傭來港工作所需辦理證件的費用及開支，包括有關領事館的核實費用及有關政府機構徵收的行政費用。如外傭已代支上述費用，僱主須向外傭發還有關款項。職業介紹所**不得**要求僱主將有關責任轉嫁予外傭。

標準僱傭合約第 5(b)條款亦規定，僱主須為外傭提供免費膳食。如不提供膳食，則須每月給予外傭膳食津貼。當局於 2017 年檢討了代替免費膳食的膳食津貼，在參考相關的

消費物價指數的變動後，決定將有關津貼提高至每月不少於 1,053 元，並適用於 2017 年 9 月 30 日起簽訂的所有新合約。

鼓勵僱主投購醫療保險

職業介紹所應提醒僱主必須為外傭投購僱員補償保險，以承擔僱主在《僱員補償條例》(第 282 章)及普通法方面的法律責任。此外，根據標準僱傭合約第 9(a)條款，僱主須在外傭受僱期間提供免費醫療。因此，職業介紹所應鼓勵外傭僱主，在為外傭購買法定的僱員補償保險時，考慮一併投購適當的醫療保險，以分擔第 9(a)條款下可能須要承擔的醫療費用。

職業介紹所應與僱主及求職者擬定書面服務協議

部分針對職業介紹所的投訴源自僱主及求職者對職業介紹所的服務期望與實際情況有落差。部分僱主投訴的例子包括：「人不對辦」、外傭實際到職日期不符合僱主期望、僱主在支付服務費後才發現須額外支付其他費用、更換外傭的安排不妥當或收費有爭議等。為避免因誤會或服務條款不清晰而導致的爭議或甚至投訴，以及保障各方的權益，職業介紹所應分別與僱主及求職者簽訂書面服務協議，並將副本交予他們。守則第 4.6 段已清楚列明服務協議內應包括的各項條款，職業介紹所亦可參考守則附錄 2a 及 2b 中的服務協議樣本，根據業務需要而擬定相關文件。

此外，僱主亦投訴職業介紹所要求他們以現金支付外傭受聘時的來港機票及終止僱傭合約時的回國旅費，但實際上外傭到職時並非從原居地到港，或離職後職業介紹所並沒有安排外傭回國。針對此類投訴，職業介紹所應向僱主提供外傭到港／回國的證明，或可建議僱主在與外傭終止合約時為外傭購買回國機票，而並非向外傭支付現金，以釋除僱主的疑慮及減少有關投訴。

事實上，職業介紹所在與求職者及僱主的一切事務往來方面，必須誠實行事，並以真確、公平及全面的方式向求職者及僱主提供相關資料，以便他們作出恰當的決定。此舉有助提升商譽，職業介紹所定會有所得益。

保存法例訂明的紀錄

根據《僱傭條例》第 56 條，持牌人須保存一份紀錄，顯示每一名向其職業介紹所登記的求職者資料。該份紀錄須載有求職者的姓名、地址、香港身分證號碼(如非香港居民，其護照號碼及國籍)、收取的費用及佣金、受僱日期及僱主的姓名與地址。職業介紹所須在每個會計年度完結後保留該份紀錄不少於 12 個月，並把該份紀錄備存於職業介紹所的營業地點，供勞工處查閱。違反有關法例可構成罪行，最高可被判處罰款 10,000 元。在 2017 年，一間職業介紹所因未有保存法例訂明的紀錄而被定罪。根據守則，職業介紹所亦應保存其他相關紀錄，包括服務協議、付款收據、僱主及外傭確認已收妥雙方已簽署的標準僱傭合約、標準僱傭合約及表格樣本、與外傭及僱主權益有關刊物的簽收紀錄等。

職業介紹所牌照的續牌申請

根據《僱傭條例》第 52(4)條，處長發出的職業介紹所牌照有效期由發牌當日起計 12 個月。牌照在有效期屆滿後即失效。根據《職業介紹所規例》第 2 條，有關牌照續期的申請書及相關表格（包括職業介紹所「相關人士」資料表格（EA-LOA）），須在牌照有效期屆滿的最少兩個月前呈交處長。職業介紹所亦須為每所分行分別提交 EA-LOA 表格。為確保現有牌照在屆滿日前已獲續牌，以免觸犯法例，持牌人必須遵守有關規定，盡早（在任何情況下不遲於牌照有效期屆滿前兩個月）提出申請。為免不必要的延誤及確保寄往本處的郵件準時無誤送達，持牌人應考慮使用可靠的派遞方式遞交文件（如掛號郵遞、速遞服務或親身遞交）。職業介紹所須自行承擔因派遞延誤或失誤而引致逾期通知或遺失文件的風險。有關牌照續期的申請書及相關表格，可於本處網站下載 (<http://www.labour.gov.hk/tc/public/guide/>)，持牌人亦可在該網站參閱《經營職業介紹所實務指南》，以了解續領牌照程序及所需文件。

請注意，《僱傭條例》第 51(1)條及第 60(6)條規定，任何人如無持有有效牌照而在港經營職業介紹所，不論其會否向服務使用者收取費用，均屬違法。在 2017 年，四間職業介紹所因無牌經營而被定罪。

持牌人不應與任何未領有有效牌照的人士或機構合作

根據《職業介紹所規例》第 6 條，除持牌人外，任何人不得直接或間接使用或利用職業介紹所牌照，而持牌人亦不得將其職業介紹所牌照借給或轉讓他人。此外，持牌人不應與任何未領有有效牌照或豁免證明書的人士或機構合作為求職者安排就業服務，包括接受他們轉介的求職者／僱主、代辦領事館文件或任何其他合作形式。

職業介紹所須提供正確及最新的資料

職業介紹所必須就牌照的申請向勞工處提交正確及最新的資料。根據《僱傭條例》第 60(5)條，任何人如就其牌照的申請向處長提供虛假或誤導的資料，即屬犯罪，一經定罪，可被處罰款最高 50,000 元。《職業介紹所規例》亦規定職業介紹所分別(i)在管理階層有任何變動後 14 天內(規例第 7 條)；(ii)在停止經辦職業介紹所 7 天內(規例第 8 條)；以及(iii)在更改營業地點不少於 14 天前(規例第 9 條)，以書面通知處長。違反有關規例的人士可被檢控，一經定罪，可被處罰款最高 10,000 元。根據守則，職業介紹所的有關連人士或受僱人員如有任何人事變動（包括新增、離職或職位調動），亦須於變動後 14 天內以 EA-LOA 表格通知職業介紹所事務科。職業介紹所須適時向本科更新相關資料，以免觸犯法例或對其牌照相關事宜造成延誤。

☞ 請緊記，經營職業介紹所時切勿從事非法及不當行為，否則得不償失。

切勿以身試法。☞

Relevant Legal Provisions, Code and Points-to-Note for Operating an Employment Agency

“Code of Practice for Employment Agencies”

The Employment (Amendment) Ordinance 2018 has come into effect on 9 February 2018. In accordance with the section 62A of Employment Ordinance (EO) (Cap. 57), the Commissioner for Labour (C for L) promulgated the revised Code of Practice for Employment Agencies (CoP) on the same day, replacing the CoP promulgated administratively on 13 January 2017, for compliance by the industry with a view to promoting professionalism and service quality in the employment agency (EA) industry. The major changes in the CoP serve to reflect the new legislative requirements, set out the standard EAs should observe in handling job-seekers' passports or personal identification documents, set out the requirements under the Prevention of Bribery Ordinance, and provide new sample forms for EAs' reference. In addition, in order to enhance foreign domestic helpers' (FDHs) understanding of their accommodation arrangements, EAs should remind employers, as a good practice, to provide information about the proposed accommodation to FDHs before signing the Standard Employment Contract (the Contract). EAs must comply with the requirements and standards set out in the CoP. According to section 53(1)(c)(iva), 53(1)(d)(iii) and 53(1)(e)(ii) of EO, the C for L may refuse to issue, renew or may revoke the licence of an EA if its licensee or person intending to be the licensee, the related persons¹ of or persons employed by its licensee or person intending to be the licensee fail to comply with the CoP.

Overcharging of commission prohibited

Under EO and the Employment Agency Regulations (EAR) (Cap. 57A) made thereunder, an EA can only **charge a job-seeker, including a FDH, a commission of not more than 10% of his/her first month's wages after the job-seeker has been successfully placed and received the wages. The maximum penalty for breach of the provision is \$350,000 and imprisonment for 3 years. The scope of the overcharging offence is extended to cover, in addition to the licensee, his/her associate² as well as any person purporting to act as such licensee or associate, who may also be liable to prosecution for charging job-seekers any amount in excess of the prescribed commission.** Upon receiving payments, EAs should issue receipts to the job-seekers bearing the company name and chop. Such receipts should be kept at the place of business as part of the placement record. The CoP further stipulates that receipts to FDHs should include the name of the FDH, the amount and nature of the fee as well as the date of receipt.

Overcharging commission is a serious offence. If an EA is convicted of this offence, the C for L will refuse to renew, or will revoke its licence. Since 2016, the C for L revoked or refused to renew the licences of seven EAs as their licensees were convicted of overcharging job-seekers.

Statutory rights and protection of FDHs

As a responsible referral agent, EAs placing FDHs should clearly explain to FDHs their statutory and contractual rights. Due to limited knowledge of living and working environment in Hong Kong, EAs should try their utmost to provide assistance to FDHs so that they may settle in the new

¹ In short, a related person includes the management of an EA. According to the law, a related person means, in relation to a company, a director, manager, secretary, or other similar officer of the company; or in relation to a partner in a partnership, another partner in the partnership or another person concerned in the management of the partnership.

² In short, an associate includes the management of and a person employed by an EA. According to the law, an associate means a related person of or an individual employed by the licensee or the person intending to be the licensee of an EA; whereas a related person means, in relation to a company, a director, manager, secretary, or other similar officer of the company; or in relation to a partner in a partnership, another partner in the partnership or another person concerned in the management of the partnership.

environment. EAs should also advise them to seek assistance when they encounter any problems at work, especially situations like maltreatment, underpayment of wages by employers or non-grant of rest days/holidays, etc.; and render them necessary assistance as appropriate. The Labour Department (LD) expects EAs to strengthen communication with FDHs so as to understand and follow up with their needs. Moreover, the Consulates-General of major FDH-sending countries in Hong Kong would organize regular briefings for newly-arrived FDHs. EAs are advised to encourage FDHs to attend the briefings and appeal to their employers to release them for the briefings. EAs are also advised to appeal to FDH employers to make necessary arrangements to facilitate the helpers to process any formalities related to their employment in Hong Kong such as passport renewal, visa application, etc..

Refrain from malpractices

EAs must observe all laws of Hong Kong and should not engage in malpractices. They must not withhold or retain the personal belongings of FDHs (including their passports, ATM cards, employment contracts, guidebooks and rights-related publications distributed to them by the Government), otherwise they may be criminally liable under the Theft Ordinance (Cap. 210). EAs should not get involved in the financial matters between the FDHs and any overseas EAs or loan firms. Moreover, EAs must not assist or abet FDHs to breach the law. According to section 53(1)(c)(v) of EO, the C for L can take into account all relevant factors in determining whether a person is fit and proper to operate an EA and whether an EA licence should be issued upon application, renewed or revoked.

Employers must pay not less than the minimum allowable wage to FDHs

An employer is required to pay an FDH wages not lower than the prevailing minimum allowable wage (currently set at **HK\$4,410 per month**). An EA which aids or abets an employer to employ an FDH at a salary lower than this amount shall be liable to the same offence as the employer. **An employer who underpays wages is liable, upon conviction, to a maximum fine of \$350,000 and three years' imprisonment.**

Any EA or person (including employers) who conspires to make false representation (including wages) to the Immigration Department when applying for an immigration visa commits an offence under the Immigration Ordinance (Cap. 115). This is a very serious offence which carries a maximum fine of \$150,000 and imprisonment of 14 years upon conviction.

Reduction of FDHs' rights and benefits prohibited

Operators and staff of EAs should ensure that their advice to employers is in line with EO and the terms of the Contract. EAs **must not** aid or abet employers to make unlawful deduction of wages (including wage deduction for repayment of a loan or other expenses to a third party), or to grant benefits such as rest days and statutory holidays less than the statutory minimum to FDHs. The Criminal Procedure Ordinance (Cap. 221) stipulates that any person who aids or abets the commission by another person of any offence shall be guilty of the like offence.

In addition, under clause 8 of the Contract, it is the employer's responsibility to pay all relevant fees and expenses, including authentication fees by the relevant Consulates and administration fee imposed by the relevant government authorities, in employing an FDH. FDHs who have paid such fees should be reimbursed by the employers. EAs **must not** ask employers to shift the burden to the helpers.

According to clause 5(b) of the Contract, employers are required to provide FDHs with food

free of charge, but may choose to pay food allowance in lieu. The Government reviewed the minimum food allowance amount in 2017 by taking account of changes in relevant consumer price index and decided to raise it to not less than \$1,053. The new level applies to all contracts signed on or after 30 September 2017.

Encourage employers to take out medical insurance

EAs should remind employers to take out an insurance policy to cover their liabilities both under the Employees' Compensation Ordinance (Cap. 282) and at common law for work injuries of their employees. In addition, under clause 9(a) of the Contract, FDH employers have responsibility to provide free medical treatment during the employment period. Therefore, EAs should encourage FDH employers, in taking out the statutory employees compensation insurance policy for the FDHs, to also consider taking out suitable medical insurance to cover possible costs incurred under clause 9(a) of the Contract.

To draw up service agreements with employers and with job-seekers

Some complaints against EAs are due to the discrepancy between the expected and actual service levels as perceived by employers and job-seekers. Some of the complaints from employers include FDHs reported duty being very much different from EAs' description, actual date of reporting duty deviated significantly from the expected date, extra payment was charged to employer after the latter has paid the service fee, unsatisfactory arrangement on replacement of FDHs and disputes on the amount charged. To avoid dispute or even complaint due to misunderstanding or unclear terms, as well as to protect all parties concerned, EAs should enter into written service agreement with the employer and job-seeker respectively and provide them with a signed copy. Paragraph 4.6 of the CoP lists out the required items in the service agreement. EAs may also refer to the sample service agreements in Appendices 2a and 2b to draw up relevant documents according to their operational needs.

Employers also complained that although the FDHs did not actually come from their home country or the FDHs did not return to their home country after termination of employment contract, the EAs still required the employer to pay cash for FDH's passage to/from Hong Kong. EAs should produce to the employers the relevant arrival/departure proof, or recommend employers to provide a return air ticket to the FDH upon termination of contract and avoid paying cash, so as to allay the doubt of employers and reduce the number of relevant complaints.

In fact, EAs should act honestly in all dealings with job-seekers and employers. Agencies should disclose information in a true, fair and complete manner so that job-seekers and employers can make a fair decision. EAs will also see the benefits of elevated reputation resulted.

Maintaining prescribed records

According to section 56 of EO, the licensee shall maintain a record showing particulars of every person who registers with his/her EA for employment. The record shall contain the job-seeker's name, address, HKID (or a passport number and citizenship if the job-seeker is not a Hong Kong resident), fee and commission received, date of employment as well as name and address of employer. Such record shall be retained for a period of not less than 12 months after the expiration of each accounting year of the EA and shall be kept at the place of business of the EA to be made available for inspection by LD. Failure to do so shall be liable for an offence, subject to a maximum penalty of \$10,000. In 2017, one EA was convicted of failing to maintain prescribed records under the law. According to the CoP, EAs should maintain other relevant records, including service agreements, payment receipts, written

acknowledgements for receipt of the duly signed Contract, sample Contract and forms, written acknowledgements for receipt of publicity materials regarding the right of FDHs and their employers.

Application for renewal of EA licence

According to section 52(4) of EO, the EA licences issued by the C for L are valid for 12 months and will become invalid upon expiration. Under regulation 2 of EAR, **an application for the renewal of a licence and related forms (including Particulars of Associate of Employment Agency (EA-LOA)) shall be submitted to the C for L at least two months before the expiration thereof. EA shall also submit separate EA-LOA form for each branch office.** To ensure that the present licence is renewed before it expires and to avoid being caught by law, the licensee should comply with the stipulations and **submit the applications as soon as possible** and in any case not later than two months before the licence expires. To avoid unnecessary delay and ensure effective and timely delivery of documents to LD, licensees may consider using a reliable way for delivery (such as registered mail, courier service, or in person). **EA shall bear the risk of late notification or loss of documents due to delay or failure in delivery.** Application for renewal of a licence and related forms can be downloaded at LD's website (<http://www.labour.gov.hk/eng/public/guide/>), licensee can also browse the "Practical Guide for Operating an Employment Agency" at the aforesaid website to learn of the procedures and documents required for the application of renewal of a licence.

Please take note that sections 51(1) and 60(6) of EO stipulate that any person who operates a business of EA in Hong Kong without a valid licence commits an offence, regardless of whether any fee will be charged for the service. In 2017, four EAs were convicted of operating without a valid licence.

Licensees not to cooperate with any person or entity without a valid licence

Under regulation 6 of EAR, no person other than the licensee shall use or make use of, directly or indirectly, an EA licence and the licensee shall not lend, transfer or assign an EA licence to another person. The licensee shall not cooperate with any person or entity without a valid licence or Certificate of Exemption in providing placement services to job-seekers, including accepting their referrals of job-seekers/employers, processing documents at Consulates-General on behalf of such person or entity or any other forms of cooperation.

Provision of accurate and up-to-date information

EAs must provide accurate and up-to-date information to LD for licence application. According to section 60(5) of EO, any person who furnishes false or misleading information to the C for L for application of licences shall be guilty of an offence and be liable to a maximum fine of \$50,000 upon conviction. EAR also require the EAs to notify the C for L in writing (i) within 14 days after the change in the management (regulation 7); (ii) within 7 days after the cessation of business (regulation 8); and (iii) 14 days before the change of the place of business of the EA (regulation 9). Contravention of these regulations shall be liable to prosecution and a maximum fine of \$10,000 upon conviction. According to the CoP, EAs are also required to notify the Employment Agencies Administration (EAA) within 14 days if there are any changes (including joining, leaving or position change) of the related person(s) or employed individual(s) by completing form EA-LOA. To avoid contravention of the law or delay in licensing matters, EAs should timely update their particulars with EAA.

👉 Please bear in mind that it does not pay to engage in illegal activities and malpractices when operating your EA. Do not take any chances. 👉

發布職業介紹所被定罪、撤銷／ 拒絕續發牌照及書面警告的紀錄

簡介

為提高透明度及保障公眾利益，勞工處建議於該處的一站式職業介紹所專題網站（<http://www.eaa.labour.gov.hk>）發布職業介紹所(a) 因干犯濫收佣金或無牌經營的罪行而被定罪的紀錄、(b) 被撤銷／拒絕續發牌照的紀錄及(c) 被勞工處職業介紹所事務科（事務科）書面警告的紀錄。本文載述有關建議的詳情。

背景及理據

2. 根據《職業介紹所規例》（第 57A 章）第 16 條的規定，勞工處處長（處長）須最少每年一次在憲報刊登一

- (a) 獲發給牌照或豁免證明書的人的姓名；
- (b) 所有遭處長撤銷或拒絕續期的牌照詳情；及
- (c) 處長決定的其他詳情。

3. 現時，勞工處每年於憲報刊登獲發牌照的職業介紹所名單，而公眾亦可在職業介紹所專題網站內查閱持牌職業介紹所的名單。當職業介紹所因干犯《僱傭條例》（第 57 章）下濫收求職者佣金或無牌經營的罪行（該兩項罪行為嚴重罪行）而被定罪，及／或當職業介紹所被撤銷或拒絕續發牌照時，勞工處亦會透過憲報及／或新聞公報發布有關資訊。有關憲報及新聞公報會上載至職業介紹所專題網站，以便公眾查閱。

4. 為加強監管職業介紹所及促進業界的服務水平，勞工處於二零一七年一月頒布《職業介紹所實務守則》（守則），載列營運職業介紹所的法定要求及標準。如職業介紹所違反守則的要求，可被書面警告。為提高透明度，守則（二零一八年二月修訂版）第 4.1.3 段訂明：為保障公眾利益，處長可就他／她對違反《僱傭條例》、《職業介紹所規例》及／或守則的職業介紹所發出的警告或所採取的紀律行動發布有關資訊。

5. 一直以來，公眾人士，包括職業介紹所的服務使用者（特別是外籍家庭傭工及其僱主）和立法會議員，亦要求提高透明度，以便更容易地獲取有關職業介紹所過往紀錄的資料。此外，有投訴指即使有關職業介紹所被定罪及撤銷／拒絕續發牌照的資料現時已於職業介紹所專題網站發布，求

職者和僱主仍難以在憲報或新聞公報中搜尋相關資料。特別是擁有較少使用職業介紹所服務經驗的求職者和僱主，他們在搜尋有關資料時可能會感到困難，甚至並未知悉相關資料可從職業介紹所專題網站取得。有些人士強調發布職業介紹所被定罪及警告的紀錄至為重要，可讓求職者和僱主在使用職業介紹所服務時，作出知情的決定，及避免墮入不良或無牌職業介紹所的陷阱。從規管職業介紹所的角度來說，提高透明度亦可促進業界採取良好的營運手法，及提升業界的服務質素。

6. 考慮到上述的情況，我們研究了採用更有系統的方式發布職業介紹所被定罪、撤銷／拒絕續發牌照的紀錄，以及發布職業介紹所被書面警告的紀錄的可行性。在制訂以下建議時，我們注意到必須小心作出平衡，在實現提高透明度和保障公眾利益的目標的同時，亦須避免對相關職業介紹所構成偏見。

建議的內容

7. 經過慎重考慮，我們建議於職業介紹所專題網站發布以下三項名單：

- (a) 職業介紹所在過去 24 個月因干犯濫收佣金或無牌經營的罪行而被定罪的名單。相關資料現時已於職業介紹所專題網站以憲報／新聞公報的方式發布；
- (b) 職業介紹所在過去 12 個月被撤銷／拒絕續發牌照的名單。相關資料現時已於職業介紹所專題網站以憲報／新聞公報的方式發布；及
- (c) 職業介紹所在過去 12 個月因違反守則而被書面警告的名單。自守則於二零一七年一月頒布後，事務科會就職業介紹所違反守則的嚴重事項，例如扣押求職者的護照、牽涉在求職者的財務事宜及持續未能與求職者及／或僱主訂立書面服務協議等，向其發出書面警告。

8. 就有關紀錄的展示期，由於第 7(a)段中提及的濫收佣金或無牌經營屬《僱傭條例》下的嚴重罪行，其最高刑罰已於二零一八年二月起提高至罰款港幣 35 萬元及監禁 3 年，因此我們建議展示相關的定罪名單 24 個月。第 7(b)段中提及的被撤銷／拒絕續發牌照名單，其展示期為 12 個月，這與《職業介紹所規例》第 16 條（見上文第 2 段）所規定處長須最少每年一次刊登所有遭撤銷或拒絕續發牌照詳情的時間間距相同。至於第 7(c)段中提及的書面警告名單，我們一方面考慮到提高透明度的需要，另一方面

亦注意到職業介紹所有可能在一年內糾正違規事項，因此我們認為把展示期定為 12 個月屬合理的安排。

9. 勞工處將只發布在上述建議措施生效日期或之後產生的紀錄。有關措施將不具追溯力。

10. 以上三項名單會上載至職業介紹所專題網站的不同頁面，並每月更新。名單發布的資料及擬議的頁面編排如下。

職業介紹所因干犯濫收佣金或無牌經營的罪行而被定罪的名單

職業介紹所 / 無牌職業介紹所名稱	職業介紹所 / 無牌職業介紹所地址	定罪日期	罪行性質	附註
職業介紹所 / 無牌職業介紹所名稱將在此展示。	職業介紹所註冊地址 / 無牌職業介紹所地址將在此展示。	法院裁定的定罪日期。	濫收佣金或無牌經營的罪行將在此註明。	牌照狀況將在此註明。
註： 1. 職業介紹所於措施生效日期或之後，因干犯濫收佣金或無牌經營罪行而被法院定罪的紀錄，將會由定罪日期起計展示為期 24 個月。 2. 如定罪需進行上訴（如有），該項紀錄將會在所有司法程序完成後發布。				

職業介紹所被撤銷／拒絕續發牌照的名單

職業介紹所名稱	職業介紹所地址	被撤銷／拒絕續發牌照的日期	被撤銷／拒絕續發牌照的理由
職業介紹所名稱將在此展示。	職業介紹所註冊地址將在此展示。	被撤銷／拒絕續發牌照的日期將在此展示。	牌照被撤銷／拒絕續發的理由將在此註明。
註： 1. 職業介紹所於措施生效日期或之後被撤銷／拒絕續發牌照的紀錄，將會由牌照被撤銷／拒絕續發的日期起計展示為期 12 個月。 2. 如撤銷／拒絕續發牌照的決定需進行上訴（如有），該項紀錄將會在所有上訴完成後發布。			

職業介紹所因違反守則而被書面警告的名單

職業介紹所 名稱	職業介紹所 地址	發出書面警告 的日期	發出書面警告 的原因
職業介紹所名稱將 在此展示。	職業介紹所註冊地 址將在此展示。	發出書面警告的日 期將在此展示。	職業介紹所違反的 守則要求將在此註 明。
註： 1. 職業介紹所於措施生效日期或之後被書面警告的紀錄，將會由書面警告的日期起計展示為期 12 個月。 2. 如書面警告需事務科進行覆檢（如有），該項紀錄將會在所有覆檢完成後發布。			

諮詢及提交意見

11. 勞工處現正就上述建議諮詢職業介紹所業界，以及職業介紹所服務的使用者。我們亦會邀請公眾提交意見。你可於二零一八年九月七日（星期五）前透過郵寄、電郵或傳真提交書面意見。請注意，所提交的意見及建議，可能予以公開作諮詢用途，任何人士如要求以不記名方式提出意見，請於提交書面意見時清楚表明。

郵寄地址	九龍旺角道 1 號 旺角道壹號商業中心 9 樓 906 室 勞工處職業介紹所事務科
電郵地址	eea-consultation@labour.gov.hk
傳真號碼	2115 3756

勞工處
職業介紹所事務科
二零一八年七月

Publishing Records of Conviction, Revocation/Refusal of Renewal of Licence and Written Warnings of Employment Agencies

Introduction

This paper sets out the proposal of the Labour Department (LD) for publishing the records of (a) conviction of the offence(s) of overcharging or unlicensed operation of employment agencies (EAs), (b) revocation/refusal of renewal of licence of EAs, and (c) written warnings issued to EAs by the Employment Agencies Administration (EAA) of LD at the one-stop portal on EAs of LD (the EA Portal: <http://www.eaa.labour.gov.hk>) with a view to enhancing transparency and better protecting the interests of the public.

Background and Justifications

2. Pursuant to Regulation 16 of the Employment Agency Regulation (EAR) (Cap. 57A), the Commissioner for Labour (the Commissioner) shall at least once a year publish in the gazette –

- (a) the name of each person to whom a licence or a certificate of exemption has been issued;
- (b) particulars of all licences which the Commissioner has revoked or has refused to renew; and
- (c) such other particulars as the Commissioner may determine.

3. At present, LD publishes a list of licensed EAs in the gazette notice annually. The list of licensed EAs is also available at the EA Portal for checking by members of the public. LD also publishes a gazette notice and/or press release when an EA is convicted of the offence(s) of overcharging of commission from job-seekers or unlicensed operation under the Employment Ordinance (EO) (Cap. 57), which are serious offences under EO, and/or when an EA's licence has been revoked or refused renewal. The gazette notices and the press releases have been uploaded onto the EA Portal to facilitate the public's easy access to such information.

4. To enhance the regulation of EAs and service standards of the industry, LD promulgated a Code of Practice for EAs (CoP) in January 2017, which set out the statutory requirements and standards for

operating EAs. Warnings may be issued to EAs contravening the requirements in the CoP. To enhance transparency, paragraph 4.1.3 of the CoP (revised version promulgated in February 2018) provides that, for the purpose of protecting public interest, the Commissioner may publish information on his/her issuance of warning or taking any disciplinary actions against an EA for contraventions of the EO, EAR and/or the CoP.

5. There have been longstanding requests from the community, including users of EA services (particularly foreign domestic helpers and their employers) and Members of the Legislative Council, for enhancing transparency and facilitating their access to EAs' track records. Moreover, there have been complaints that, although information on conviction records as well as revocation/refusal for renewal of licence are already available on the EA Portal, it is still difficult for job-seekers and employers to search for such information in gazette notices or press releases. In particular, job-seekers and employers with less experience in engaging EA services find it difficult to look for or may not even be aware of the availability of such information on the EA Portal. Some stressed the importance of publishing conviction and warning records of EAs so that job-seekers and employers could make a more informed decision and avoid falling prey to unscrupulous EAs or EAs without a valid licence when engaging EA services. From the perspective of regulation of EAs, the enhanced transparency would also help foster the adoption of good practices by EAs and raise the service standard of the EA industry.

6. Having considered the above, we have examined the feasibility of putting in place a more systematic way of publishing conviction records and revocation/refusal of renewal of licence, and publishing warning records issued to EAs. In formulating the proposal below, we have been mindful of the need to strike a balance between achieving the objective of enhancing transparency and protecting public interests on the one hand, and avoiding causing prejudice to the EAs concerned on the other hand.

The Proposal

7. After careful consideration, we propose to publish the following three lists on the EA Portal –

- (a) a list of EAs convicted of the offence(s) of overcharging or unlicensed operation in the past 24 months. Such information is currently available on the EA Portal in the form of gazette notices/press releases;

- (b) a list of EAs whose licences were revoked/refused renewal in the past 12 months. Such information is currently available on the EA Portal in the form of gazette notices/press releases; and
- (c) a list of EAs which were issued written warning(s) for non-compliance with the CoP in the past 12 months. Since the promulgation of the CoP in January 2017, EAA has issued written warnings for non-compliance with the CoP of a serious nature, such as withholding passports of job-seekers, involving in the financial affairs of job-seekers, and repeated failure to draw up service agreement with job-seekers and/or employers.

8. With regard to the duration of publication, a period of 24 months is proposed for the list of convictions of overcharging or unlicensed operation in paragraph 7(a) as the two offences are serious offences under EO, the maximum penalties for which have been raised to a fine of \$350,000 and imprisonment for three years since February 2018. For the list on revocation/refusal for renewal of licence in paragraph 7(b), the 12-month publication duration is the same as the publication interval under Regulation 16 of EAR as mentioned in paragraph 2 above, which requires the Commissioner to publish the particulars of all licences revoked or refused to renew at least once a year. As for the list of written warnings in paragraph 7(c), we also consider a 12-month publication duration reasonable having considered both the need to enhance transparency and the possibility that EAs may have rectified the irregularities within a year's time.

9. Only records that occur on or after the date of the implementation of the above proposed measure will be published. The measure will not have retrospective effect.

10. The three lists will be maintained on separate webpages at the EA Portal and updated on a monthly basis. The types of information to be published and layout of the proposed webpages are illustrated below.

**List of EAs Convicted of Offence(s) of Overcharging or
Unlicensed Operation**

Name of the EA/ Unlicensed EA	Address of the EA/Unlicensed EA	Date of Conviction	Nature of Offence	Remarks
The name of the EA/unlicensed EA will be shown here.	The registered address of the EA/address of the unlicensed EA will be shown here.	Date of conviction by the court.	Offence of overcharging or unlicensed operation will be stated here.	The status of the EA licence will be stated here.
Notes: 1. Records of conviction of overcharging or unlicensed operation offence(s) by the court on or after the implementation date will be published for a period of 24 months, counting from the date of conviction. 2. Convictions which are undergoing appeal (if any) at the court will be published upon the completion of the legal proceedings.				

List of EAs whose Licences were Revoked/Refused Renewal

Name of the EA	Address of the EA	Date of Revocation / Refusal of Renewal of Licence	Ground(s) of Revocation / Refusal of Renewal of Licence
The name of the EA will be shown here.	The registered address of the EA will be shown here.	Date of revocation/refusal of renewal of licence will be shown here.	The ground(s) for revocation/refusal of renewal of licence will be stated here.
Notes: 1. Records of revocation/refusal of renewal of licence which occurred on or after the implementation date will be published for a period of 12 months, counting from the date on which the licence was revoked or refused renewal. 2. Decisions on revocation/refusal of renewal of licence which are undergoing appeal (if any) will be published upon the completion of the appeal.			

**List of EAs which were issued Written Warning(s) for
Non-compliance with the CoP**

Name of the EA	Address of the EA	Date of Warning	Reasons of Warning
The name of the EA will be shown here.	The registered address of the EA will be shown here.	Date of the written warning(s) issued will be shown here.	CoP requirement(s) not complied with by the EA will be stated here.
Notes: 1. Records of written warning(s) issued on or after the implementation date will be published for a period of 12 months, counting from the date of the written warning(s). 2. Written warnings which are undergoing review by EAA (if any) will be published upon the completion of the review.			

Consultation and Invitation of Views

11. LD is consulting the EA industry as well as users of EA services on the above proposal. Views from members of the public would also be invited. You may send in your views and suggestions in writing by 7 September 2018 (Friday) by mail, e-mail or fax as indicated below. Please note that views and suggestions submitted may be published for consultation purposes. Please specify in your submission if you wish to request anonymity.

Mailing Address	Employment Agencies Administration Labour Department Room 906, 9/F One Mong Kok Road Commercial Centre 1 Mong Kok Road Kowloon Hong Kong
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**Employment Agencies Administration
Labour Department
July 2018**